

Guddu Prajapati v. U.P. Power Corporation Limited

High Court of Judicature at Allahabad · Division Bench · 15 July 2022 · WRIT - C No. - 12583 of 2022 · **Writ disposed; liberty to file Para 6.8 objection with stay of coercive action.**

HEADNOTE

A Division Bench of the Allahabad High Court disposed of a writ challenging a recovery citation for electricity dues of Rs 6,13,867 without examining merits. On the licensee's statement that an objection would be decided in accordance with law, the Court granted liberty to file an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks, directed time-bound disposal after hearing, and stayed coercive action for eight weeks or until the objection was decided, whichever was earlier.

FACTUAL SUMMARY

Guddu Prajapati approached the Allahabad High Court seeking certiorari to quash a recovery citation dated 15 January 2022 issued for electricity dues of Rs 6,13,867. Counsel for U.P. Power Corporation Limited stated on instructions that the petitioner could file an objection against the demand, which would be decided in accordance with law within a time-bound period. The Court disposed of the writ without examining the merits of the demand.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection to recovery demand under Para 6.8

HOLDING

Without expressing any opinion on merits, a writ challenging a recovery citation for electricity dues is disposed of by granting liberty to file an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer within four weeks; if so filed, the objection is to be decided in accordance with law within the next four weeks after reasonable opportunity of hearing, and no coercive action is to be taken on the impugned demand for eight weeks or till disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay Writ against a recovery citation for electricity dues was disposed by directing a Para 6.8 objection to the Executive Engineer for time-bound disposal after hearing, with a stay of coercive action for eight weeks or till disposal, whichever is earlier. ¶ 1

assessment-6.8-alternate-remedy The Court declined a merits decision on the recovery citation and relegated the consumer to the statutory objection under Para 6.8, to be decided in accordance with law. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY CITATION DATED 15.01.2022 AND THE UNDERLYING ELECTRICITY DUES OF RS 6,13,867

The Court expressly declined to express any opinion on the merits of the petitioner's case. ¶ 1